

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 9, 2015

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Cook, Mr. Johnson, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Mr. Brown. Also present: Carol Intlekofer, City Clerk, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Dr. Rinne, and pursuant to support received by Mr. Shanor and Mr. Cook, agenda item #17 was removed from the Consent Agenda. Mr. Luna moved to approve remaining Consent Agenda items, seconded by Mr. Roybal. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on February 23, 2015. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meetings of the Governing Body on February 20, 24, 25 and 26, 2015. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Tyrrell-Doyle Auto Center) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for a parcel of land of approximately 78.9 acres situated in the North 286.5 feet of Tract 36; NW¼SE¼SW¼ of Section 4; and a portion of Sections 4 and 5, T.13N., R66W., 6th P.M., Laramie County, Wyoming (located North of E. Fox Farm Road, between Morrie Avenue and Avenue C-4). Josh Tetzlaff, Planning and Development office, reviewed the property to be annexed and stated that requirements and compliance of annexation conditions contained in state statutes had been met. He noted that an affiliated preliminary plat has been submitted and a final plat and zoning amendment will also require consideration for approval. Upon inquiry, Mr. Tetzlaff advised there is one adjacent property that will remain in the County since the property owner does not wish to seek annexation at this time; reviewed street improvements within the area that will meet city standards; advised soil testing has been conducted and that any refuse or contamination will have to be remedied before development

occurs; noted that quite a few easements run through the property and will be shown in the preliminary plat, and that the applicant has proposed a trail along the north side of the property with those details being worked out through the platting process. Comments followed on past use of the property; topography of the area, and topics that will be determined through the platting process. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a portion of the W1/2 E1/2 of Section 35, T.14N., R.66W., 6th P.M., Laramie County, Wyoming, to be known as Chukker Ridge, 2nd Filing Annexation (located east of Pennsylvania Avenue, between 13th Street and Atlantic Avenue). Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (#4058)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from A-2 Agricultural (County) to MR-2 Medium-Density Residential, Developing for a portion of the W1/2 E1/2 of Section 35, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Chukker Ridge, 2nd Filing (located east of Pennsylvania Avenue, between 13th Street and Atlantic Drive). Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Comments followed regarding drainage concerns generally in the area and addressing that issue in the future. Motion carried. Voting "yes" -- all members of the governing body present. (#4059)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, Tracts 45 and 46, Dell Range Addition, 4th Filing, Laramie County, Wyoming (located at the northeast corner of the intersection of N. College Drive and Dell Range Boulevard). Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (#4060)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium-Density Residential to MUB Mixed-Use Business Emphasis for Tracts 45 and 46, Dell Range Addition, 4th Filing, Cheyenne, Wyoming (located at the northeast corner of the intersection of N. College Drive and Dell Range Boulevard). Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (#4061)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, Lots 11 and 12, Block 1, Downey Addition, Laramie County, Wyoming (located north of and adjacent to Land Court, east of Grove Drive). Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (#4062)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code,

changing the zoning classification from County MR Medium-Density Residential to MR-1 Medium-Density Residential, Established for Lots 11 and 12, Block 1, Downey Addition, Cheyenne, Wyoming (located north of and adjacent to Land Court, east of Grove Drive). Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (#4063)

ORDINANCE - Repealing Chapter 5.76, Temporary or Transient Merchants, in its entirety and re-creating Chapter 5.76, Temporary or Transient Merchants; Residential Door-To-Door Solicitors, of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming -- referred to Public Services Committee (sponsors -- Mr. Cook and Ms. Williams).

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, the North 286.5 feet of Tract 36; NW $\frac{1}{4}$ SE $\frac{1}{4}$ SW $\frac{1}{4}$ of Section 4; and a portion of Sections 4 & 5, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located north of E. Fox Farm Road, between Morrie Avenue and Avenue C-4) -- referred to Public Services Committee (sponsor -- Mr. Cook).

RESOLUTION - Re-appropriating the Fiscal Year 2015 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Reporting for Finance Committee, Mr. Roybal moved to adopt, seconded by Mr. Valdez. Upon inquiry, Lois Huff, City Treasurer, provided information regarding the proposed re-appropriation of \$2,000,000 for pavement management system improvements relative to the City's general fund reserve balance status; amount of reserve funds that are assigned and unassigned; verified that no 1% sales tax monies are involved in the re-appropriation for the street improvements, and noted use of 1% monies that are dedicated to road projects. Discussion included the following topics: General fund reserve status; use of 1% sales tax monies for street improvements and repairs and amounts collected from the 2011-2014 term; location of streets proposed to be improved; pavement management program; potholes, and on-going need for funding street maintenance improvements. In response to inquiries, Nathan Beauheim, Acting City Engineer, provided information on the pavement management program and road analysis that was conducted which identified roads requiring capital maintenance, stating the purpose of the program is to get the most life as possible out of streets; street locations and types of improvements that would be achieved with the funding; current street improvement projects being accomplished through use of 1% sales tax funds; annual budget amount dedicated to street repairs and improvements, and the on-going problem of deteriorating streets due to age and use. Upon inquiry, Craig LaVoy, Public Works Department, reviewed criteria the pavement management system utilizes to determine identification of streets requiring maintenance; advised it is key to get streets in maintenance vs. deterioration mode due to more costs involved once a street deteriorates, and explained the typical life span of streets if properly maintained and conditions that affect street life. In response to inquiries, Mayor Kaysen and Ms. Huff provided information on 5th penny sales tax collection amounts for the 2011-2014 ballot term; estimated amount of overage; percentage of 5th penny money allocated for street projects, and current 1% projects. Ms. Huff stated if the re-appropriation is approved, the City would be at a 60 day unassigned reserve level and Mayor Kaysen indicated approximately \$5,000,000 is needed annually to keep up with street maintenance. Discussion followed on the proposed re-appropriation of \$217,000 for Aquatic Center costs to equal the Fiscal Year 2014 budget. Upon inquiry during discussion, Rick Parish, Parks and Recreation Director, explained the current budget amount was reduced during the Fiscal Year 2015 budget

process as costs were unknown at that time with regard to the pool renovation project's construction time frames and affiliated staffing and operational costs. Mr. Parish provided information on expenses incurred due to relocating municipal pool services to various local schools with swimming pools during the renovation; additional life guards required for the remote locations and janitorial and affiliated costs assessed for use of the sites. He reviewed the costs affiliated with the pool renovation 6th penny sales tax project; grant received, and use of Menard's land sale proceeds for certain department projects, and verified the funding from reserves will not go toward the renovation project construction costs. Following further discussion, Mr. Shanor moved to amend the re-appropriation amount by subtracting \$600,000 to reflect a reduction of \$100,000 from Parks and Recreation's request and a reduction of \$500,000 from Miscellaneous Items (streets), seconded by Dr. Rinne. Mr. Parish spoke in opposition to the amendment, explaining the newly renovated portion of the Aquatics Center is scheduled to open May 1st and, in addition to past expenses he previously noted, will involve additional costs to operate through the end of the fiscal year. Jeff Dierksen spoke in opposition to removing the funding for street maintenance, commenting that it appears the maintenance program is already underfunded. Discussion included the following topics: Concern with reducing the general fund reserve level; funding for economic development; amount of 6th penny sales tax monies needed for the Aquatics Center renovation project, and funding use requirements utilizing Menard's land sale proceeds for Parks and Recreation Department projects, including Converse girls softball field and Powers baseball field improvements. Upon inquiry, Mr. Parish and Mayor Kaysen provided information on the Aquatics Center renovation construction costs and benefits of the ball field improvements respectively. During discussion, Dr. Rinne raised a point of order that discussion was not germane to the motion on the floor with Mayor Kaysen stating comments should pertain to the motion to amend. Motion to amend carried. Voting "yes" -- Mr. Johnson, Mr. Luna, Dr. Rinne, Mr. Shanor, Ms. Williams. Voting "no" -- Mr. Cook, Mr. Roybal, Mr. Valdez and Mayor Kaysen. Main motion as amended carried. Voting "yes" -- all members of the governing body present. (#5660)

[CA] RESOLUTION - Authorizing the Cheyenne Police Department to apply for the Wyoming Department of Transportation, Highway Safety Program, Grant Funding for the City's Mobile D.U.I. Command Post. Motion (per Consent Agenda) carried. (#5661)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Chukker Ridge, 2nd Filing, a replat of a portion of the W $\frac{1}{2}$ E $\frac{1}{2}$ of Section 35, T.14N., R66W., of the 6th P.M. Laramie County, Wyoming (located east Pennsylvania Avenue, between 13th Street and Atlantic Drive). Motion (per Consent Agenda) carried. (#5662)

[CA] RESOLUTION - Authorizing the Cheyenne Police Department to apply for Office on Violence Against Women OVW-2015-4031 Grants to encourage arrest policies and enforcement of protection orders program. Motion (per Consent Agenda) carried. (#5663)

[CA] RESOLUTION - Directing staff to proceed with the process of presenting to the Governing Body of the City of Cheyenne for consideration an ordinance adopting impact fees on new development in the City of Cheyenne -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Cheyenne Regional Airport Board to enter into a grant

agreement with the U.S. Department of Transportation to accept and receive a grant for \$200,000 under the Small Community Air Service Development Grant Program -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Preliminary Plat for Waterford Square, situated in the North 286.5 feet of Tract 36; NW¹/₄SE¹/₄SW¹/₄ of Section 4; and a portion of Sections 4 & 5, T.13N., R.66W., 6th P.M., Laramie County, WY (located north of E. Fox Farm Road, between Morrie Avenue and Avenue C-4) -- referred to Public Services Committee.

[CA] Lease Agreement between the City of Cheyenne, Information Technology Division, and Xerox by Xerox Agent XESI for 11 copiers for various City Departments. Motion (per Consent Agenda) carried. (#6298)

[CA] Cooperative Agreement between the City of Cheyenne, Laramie County, Wyoming, and United Way of Laramie County to jointly create a Human Services Advisory Council (HSAC) for the purpose of coordinating human services funding and delivery systems. Motion (per Consent Agenda) carried. (#6299)

[CA] Professional Services Agreement between the City of Cheyenne, Engineering Department, and Ayres Associates for Lake Minnehaha Remediation Plan Phase 2 Project at Holliday Park (County Consensus Block Grant) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Girls Softball Association for the right to use the Concession Stands in Converse Softball Complex and Brimmer Park for the 2015 - 2017 seasons -- referred to Finance Committee.

[CA] Memorandum of Understanding between The City of Cheyenne and The Nature Conservancy, a non-profit corporation, regarding City financial support of the purchase of a conservation easement benefitting the Big Hole property owned by the City of Cheyenne -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and InTTec Inc. to permit limited use of the public right-of-way for the installation of a fiber optic communications system and setting a fee (Revenue to City) -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 6137 between the City of Cheyenne, Parks and Recreation Department, Greenway Division, and Reiman Corporation for reduction in retainage from 10% to 5% as allowed by Wyo. Stat. §16-6-702 (Greenway funds). Motion (per Consent Agenda) carried. (#6137)

[CA] Amendment No. 4 to Contract No. 4173 between the City of Cheyenne, Cheyenne Police Department, and New World Systems Corporation, adding BOLOS, Web Briefing Notes, Automatic Vehicle Location Cad Interface, AVL Mobile In-Car Mapping, and G.I.S. Interface (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$82,226.00). (#4173)

[CA] Contract Modification No. 4 to Contract No. 6115 between the City of Cheyenne and FCI Constructors of Wyoming, LLC, to modify the construction contingency and the total contract price for the Cheyenne Public Safety Center Project -- referred to Finance Committee.

[CA] Consideration of Bid #M-13-15 for a contract between the City of Cheyenne, Parks and Recreation Department, and American Contracting of Wyoming, LLC, Cheyenne, Wyoming, for David R. Romero, South Cheyenne Community Park, Public Restroom Infrastructure Installation Project (CDBG Funds). Motion (per Consent Agenda) carried (amount not to exceed \$118,320.00). (#6300)

[CA] Consideration of Bid #M-14-15 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corporation and Subsidiary, Cheyenne, Wyoming, for the 19th Street Rehabilitation, Phase I Project (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$3,423,141.55). (#6301)

[CA] Consideration of Bid #M-15-15 for a contract between the City of Cheyenne, 1% Construction Division, and Mechanical Systems, Inc., Cheyenne, Wyoming, for the Fiscal Year 2015 Drainage Improvements Project (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$262,817.23). (#6302)

[CA] Consideration of Bid #R-22-15 for furnishing one new bi-directional tractor with hydrostatic drive system and 21' width flail mower for the City's Street and Alley Division (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-23-15 for furnishing one new 2015-2016 cab and chassis with automated refuse collection packer body with dual arm side loaders installed for the City's Sanitation Division (Insurance and Miscellaneous Claims) -- referred to Finance Committee.

[CA] Renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill liquor licenses and microbrewery permits) filed with the City Clerk's Office. The name of said applicant, type of license and description of premises which applicant desires to use as the place of sale are set forth as follows: High Plains Entertainment, Inc. d/b/a Redwood Lounge and Package Liquor, retail, 2105 E. Lincolnway; Cheyenne Vail Investments, Inc. d/b/a Gus & Jon's Crown Bar, retail, 222 West Lincolnway; Poor Richard's d/b/a Poor Richard's, retail, 2233 E. Lincolnway; W.W. Enterprises, Inc. d/b/a Les' Lamp Lounge and Drive-In Liquor, retail, 101 W. 6th St.; The Blue Bird, Inc. d/b/a Uncle Charlie's, retail, 6001 Yellowstone Road; Langhoff Enterprises d/b/a Two Bar Bowl, retail, 700 E. Carlson; Cadillac Ranch Bar, Inc. d/b/a Cadillac Ranch Bar, retail, 3307 Nationway; Fraternal Order of Eagles Aerie #128, ltd. retail, 1600 Thomes Ave.; B.P.O. Elks #660, ltd. retail, 100 E. 17th St.; W. E. Dinneen, Inc. d/b/a W. E. Dinneen, Inc. Package Liquor, retail, 400 W. Lincolnway; KEG, Inc. d/b/a D.T.'s Liquor Mart & Tusker Bar, retail, 3310 Ridge Road; JKLL, Inc. d/b/a The Drunken Skunk, retail, 1617 Capitol Ave.; Twin Dragon Chinese Rest., Inc. d/b/a Twin Dragon, rest., 1809 Carey Avenue; South Side Bar, Inc. d/b/a Keg 'n Kork Liquors, retail, 822 Central Ave.; Rande's Ritz, LLC d/b/a Midtown Tavern, retail, 1303 E. Pershing Blvd.; Cheyenne Country Club, ltd. retail, 800 Stinner Road; F & G Corp. d/b/a The Green

Door, retail, 301 E. Lincolnway; ENI, Inc. d/b/a Eagle's Nest, retail, 1101 W. Lincolnway; Outback Steakhouse of Florida, LLC d/b/a Outback Steakhouse, retail, 1626 Fleischli Parkway; Lambousis Revocable Trust, retail, 112 W. 17th St.; Four Winds, Inc. d/b/a Four Winds, retail, 1103 E. Pershing; EKG, Inc. d/b/a D.T.'s Package Liquor and Lounge, retail, 2121 E. Lincolnway; Alf in Wyoming Enterprise, LLC d/b/a Alf's Pub and Package Liquor, retail, 1622 E. 19th St.; Flatland Investments, LLC d/b/a Godfather's Pizza, rest., 5719 Yellowstone Road; Francis E. Self Post #6 d/b/a The American Legion Post #6, ltd. retail, 2001 E. Lincolnway; The Peaks Cafe II, LLC d/b/a The Peaks Cafe II at the Airport, rest., 300 E. 8th Ave.; F.E. Warren Post #1881 d/b/a V.F.W. Post #1881, ltd. retail, 2816 E. 7th St.; Knights of Columbus Council #801 d/b/a Casey's Club, ltd. retail, 507 W. 28th St.; Blanne Enterprises, Inc. d/b/a Cool River Wine & Spirits, retail, 5225 Yellowstone Rd.; Re-o-na Sushi and Thai d/b/a Re-o-na Sushi Bar and Thai Cuisine, rest., 112 W. 17th St.; Los Abuelos Mexican Restaurant, LLC d/b/a Los Abuelos Mexican Restaurant, retail, 1601 Central Ave.; Airport Golf Club, Inc., ltd. retail, 4801 Central Ave.; Loveless Investments, LLC d/b/a Camille's Gumbo House, rest., 1617 Capitol Ave.; Katrina M. and Adam L. Howell d/b/a Scooter's Scoreboard Bar, retail, 507 E. Lincolnway; Cloud 9, Inc. d/b/a Cloud 9 Liquorland, retail, 1958 Dell Range Blvd. #C; Texas Roadhouse Holdings, LLC d/b/a Texas Roadhouse, retail, 1931 Bluegrass Circle; HEJE, Inc. d/b/a Outlaw Liquors, retail, 4503 Western Way; Mason Properties Inc., retail, 2801 E. Lincolnway; Minglemill Inc. d/b/a Peppermill, retail, 1618 Stillwater Ave.; Prairie View Golf Club, ltd. retail, 3600 Windmill Road; Albany, Inc. d/b/a Albany Rest., Bar and Liquormart, retail, 1506 Capitol Ave.; Mehn, Inc. d/b/a Casa De Garcia, rest., 122 W. 6th St.; S&W Properties, LLC d/b/a Vinos Wine and Spirits, retail, 453 Vandehei Ave., #190; The Plains Hotel Co., LLC d/b/a The Plains Hotel, resort, 1600 Central Ave.; Anong & Brett Larsen d/b/a Anong's Thai Cuisine, rest., 620 Central Ave.; Avanti, Inc. d/b/a Dell Range Liquor, retail, 3806 Dell Range Blvd., Suite 4; Pizza Hut on Yellowstone, Inc, rest., 5320 Yellowstone Rd.; Hotel West I, LP d/b/a Holiday Inn Cheyenne, resort, 204 W. Fox Farm Rd.; AMVETS Post #10, ltd. retail, 3839 E. Lincolnway; Moreno & Reyes, LLC d/b/a Guadalajara Family Mexican Rest., rest., 1745 Dell Range Blvd.; Pizza Hut of Cheyenne, Inc. d/b/a Pizza Hut/Wing Street, rest., 4503 Western Way; 2 Doors Down 2, Inc. d/b/a 2 Doors Down 2, rest., 1802 Dell Range Blvd., #2; Morris House Enterprises, Inc. d/b/a Morris House Bistro, rest., 2114 Warren Ave.; Bighorn Associates, LC d/b/a Chili's Southwest Grill and Bar, retail, 1320 Dell Range Blvd.; Appaloosa Enterprises, LLC d/b/a Sanford's Grub & Pub, retail, 115 E. 17th St.; Maria Ramos d/b/a El Charrito Mexican Restaurant, rest., 216 E. 17th St.; RMH Franchise Corporation d/b/a Applebee's Neighborhood Grill and Bar, retail, 1401 Dell Range Blvd.; Delilah R. Pineda d/b/a Estevan's Cafe, rest., 1820 Ridge Road; Hospitality LLC d/b/a Red Lobster #639, retail, 1923 Dell Range Blvd.; Dynasty Café, Inc. d/b/a Dynasty Cafe, rest., 600 W. 19th St.; Mondello Corporation d/b/a L'Osteria Mondello, rest., 1507 Stillwater; China Buffet, Inc. d/b/a China Buffet, rest., 1958 Dell Range Blvd.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, rest., 115 W. 15th St., #1; Steamboat's, LLC d/b/a Steamboat's Wyoming Steak and Smoke House, retail, 1947 Dell Range Blvd.; Nagle-Warren Mansion, LLC d/b/a Nagle-Warren Mansion LLC, rest., 222 East 17th St.; Wadsworth Old Chicago, Inc. d/b/a Old Chicago Rest., retail, 1734 Meadowland Dr.; Sandra J. Innis d/b/a 2 Doors Down, rest., 118 E. 17th St.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, microbrewery, 115 W. 15th St.; Freedoms Edge Brewing Co., LLC d/b/a Freedoms Edge Brewing Co., microbrewery, 301 W. Lincolnway; OG of Cheyenne, Inc. d/b/a The Olive Garden Italian Rest., bar & grill, 1536 Dell Range Blvd.; Moreno and Aguilar, LLC d/b/a Hacienda Guadalajara, bar & grill, 317 E. Lincolnway; O'Jackson's, Inc. d/b/a Jackson's All American Sports Bar & Grill, bar & grill, 1121 Old Town Lane; Blazin Wings, Inc. d/b/a Buffalo

Wild Wings #403, bar & grill, 1740 Prairie Ave.; The Suite, LLC d/b/a The Suite, bar & grill, 1901 Central Ave.; WRCH-Cheyenne, Inc. d/b/a Wyoming's Rib and Chop House, bar & grill, 400 W. Lincolnway; JSKB, Inc. d/b/a J's Taco Bistro, bar & grill, 112 E. 17th St. Motion (per Consent Agenda) carried.

Announcement was made of the Appointment of Anthony Durst to the International Fire Code Board of Appeals, to be confirmed March 23, 2015.

Under other business:

Jeff Dierksen referenced a petition that had been previously submitted regarding traffic and safety concerns involving a portion of Pinto Lane and expressed his belief that mitigation of the concerns have not been completely addressed through the Neighborhood Traffic Management Program (NTMP) process. He commented on the resolution amending the NTMP the governing body recently adopted, requested the resolution be reconsidered and stated his reasons for the request. Discussion followed on funding for the NTMP program; identification of and accessibility to information of available grants, applicant eligibility, and the grant process affiliated with the Metropolitan Planning Organization (MPO). Upon inquiry, Nathan Beauheim, Acting City Engineer, provided information on traffic signs that will be installed and referenced the final report issued by the MPO director. Mayor Kaysen advised he would request the MPO director provide information pursuant to the discussion on grants to governing body members as well as the final report on the Pinto Lane corridor study.

In response to inquiry, Mayor Kaysen provided an update on the status of the division of the Planning and Development offices is to separate departments and indicated a list of stakeholders proposed to be involved in an upcoming meeting to discuss the separation of offices will be forthcoming, noting the topic is currently being evaluated as part of the Fiscal Year 2016 budget preparation process.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:45 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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